



United States
Attorney's Office
District of New Jersey



Amtrak Employee Admits Participating In \$11 Million Health Care Fraud Scheme

Thursday, January 23, 2025

For Immediate Release

U.S. Attorney's Office, District of New Jersey

NEWARK, N.J. – An Amtrak employee admitted participating in a health care fraud scheme to defraud Amtrak, Acting U.S. Attorney Vikas Khanna announced.

Rodolfo Rivera, 41, of Clayton, Delaware, pleaded guilty before U.S. District Judge Madeline Cox Arleo in Newark federal court to an Indictment charging him with conspiracy to commit health care fraud. The Indictment also charges nine other co-conspirators in connection with the scheme: Kevin Frink, 53, of Willingboro, New Jersey; Quinton Johnson, 53, of Irvington, New Jersey; David McBrien, 36, of Levittown, Pennsylvania; Gregory Richardson, 35, of Roosevelt, New York; Michael Toal, 35, of Hazlet, New Jersey; Damany Walker, 41, of Irvington, New Jersey; Timothy Bogen, 59, of Hamden, Connecticut; Dion Jacob, 50, of Brooklyn, New York; and David Lonergan, 64, of Rockaway Park, New York.

According to documents filed in this case and statements made in court:

From January 2019 through June 2022, Rivera and his co-conspirators—who were also Amtrak employees—engaged in a scheme to obtain cash kickbacks from health care providers in return for their agreement to allow their health insurance plan to be billed for services that were never provided and were not medically necessary. As a result of the fraudulent claims submitted on behalf of Rivera, his dependent, and other Amtrak employees that he recruited into the scheme, the Amtrak health care plan paid over \$2 million in reimbursements. In total, as a result of the conspiracy, the Amtrak health care plan paid over \$11 million in fraudulent claims associated with providers connected to the scheme.

Rivera received thousands of dollars in cash kickbacks from health care providers in return for his participation in the scheme, including from Punson Figueroa, an acupuncturist, and Michael DeNicola, a podiatrist. Figueroa previously pleaded guilty to conspiracy to commit health care fraud and was sentenced on September 24, 2024 to 34 months in prison. DeNicola previously pleaded guilty on June 29, 2022 to conspiracy to commit health care fraud, among other offenses. His sentencing remains pending.

The health care fraud conspiracy charge carries a maximum potential penalty of 10 years in prison and a \$250,000 fine. Rivera’s sentencing is scheduled for June 26, 2025.

Acting U.S. Attorney Khanna credited special agents of the Amtrak Office of Inspector General, under the direction of Special Agent in Charge Michael J. Waters, the Amtrak Police Department, under the direction of Chief of Police Samuel Dotson, and special agents of the Drug Enforcement Administration, under the direction of Special Agent in Charge Frank A. Tarentino III in New York, with the investigation leading to today’s guilty plea.

The government is represented by Assistant U.S. Attorneys Jessica R. Ecker and Katherine M. Romano of the Health Care Fraud Unit, and Senior Trial Counsel Barbara Ward of the Bank Integrity, Recovery, and Money Laundering Unit, in Newark.

The charge and allegations contained in the Indictment against Frink, Johnson, McBrien, Richardson, Toal, Walker, Bogen, Jacob, and Lonergan, are merely accusations, and they are each presumed innocent unless and until proven guilty.

###

Defense counsel: Dennis S. Cleary, Esq.

[rivera.indictment.pdf](#)

Updated January 23, 2025

Topic

HEALTHCARE FRAUD

Component

[USAO - New Jersey](#)

Press Release Number: 25-017

Related Content



PRESS RELEASE

Operations Manager of Wholesale Drug Distributor Sentenced to 30 Months in Prison for Role in Scheme to Buy Nearly \$50m of Prescription Medications Under False Pretenses and Resell Them for Profit

A North Jersey man was sentenced on July 29, 2026, to 30 months' imprisonment for conspiring with doctors and others to purchase nearly \$50 million worth of oncology and ophthalmology...

August 4, 2026

PRESS RELEASE

Founder And Former CEO of New Jersey Based Eye Care Group Charged with Health Care Fraud Conspiracy and Paying Illegal Kickbacks

Charges were brought today against the founder and former CEO of a New Jersey based management company that oversaw an optometry practice and eye surgery center for conspiring to commit...

July 29, 2026

PRESS RELEASE

Six Individuals, Including a Pharmacist and Doctor, Charged in Connection with \$20 Million Healthcare Fraud and Kickback Scheme

United States Attorney Robert Frazer announces criminal charges against 6 defendants in connection with an alleged scheme to defraud Medicare and Medicaid involving a doctor and other medical professionals issuing...

July 9, 2026



District of New Jersey

Main Office:

